

11.	25CV0901	JANEEN KIMBRIEL VS. CHELSEA M. CISCOE ET AL
MOTION TO SELL PROPERTY AND APPOINT PARTITION REFEREE / MOTION FOR RECONSIDERATION / MOTION TO STRIKE / DEMURRER		

Before the Court are the following motions: 1) Plaintiff's Motion to Sell Property and Appoint Partition Referee; 2) Plaintiff's Demurrer to Defendant's First Amended Cross-Complaint; and 3) Defendant's Motion for Reconsideration/Plaintiff's and Defendant's Motions to Strike.

MOTION FOR RECONSIDERATION/MOTION TO STRIKE

Defendant and Cross-Complainant's, Chelsea M. Ciscoe ("Defendant") moves for reconsideration of the April 15, 2026, Order granting Motion for Summary Adjudication.

Timeliness

On April 15, 2026, the Court entered an Interlocutory Judgment and Notice of Entry of Judgment. A Notice of Entry of Judgment was filed on April 16, 2026, indicating electronic service was effectuated on the same date. On April 30, 2026, Defendant filed a Motion for Reconsideration.

Plaintiff argues Defendant's motion for reconsideration is untimely pursuant to Code of Civil Procedure § 1008. Defendant had 10 days after service to file the motion, which fell on Sunday, April 26, 2026. As the deadline fell on a Sunday, the deadline rolled to Monday, April 27, 2026. As the Notice of Entry was served electronically, Defendant was given two extra court days to file the motion, providing a deadline of Wednesday, April 29, 2026.

The Declaration of Crystal Phimmase provides that she attempted to file the motion on April 29, 2026, but that the filing was rejected because it was submitted as a "motion for summary judgment," which required a reservation and filing fee. Upon notice of the rejection, Ms. Phimmase subsequently corrected the filing and filed the motion on April 30, 2026.

In *Lazar v. Bishop* (2024) 107 Cal.App.5th 668, 676, the court deemed a notice of appeal timely filed where it was submitted before the filing deadline but rejected due to a technical issue with electronic filing, and counsel promptly refiled the same day counsel received the rejection. Similarly here, Defendant attempted to file the motion on April 29, 2026, but it was rejected due to a technical issue with electronic filing. Upon notice of the error, Defendant acted diligently to file the motion the same date as receipt. The Court accordingly finds Defendant's motion is timely.

Request for Judicial Notice

Defendant seeks judicial notice of the following: 1) April 16, 2026, Notice of Entry of Order; 2) January 30, 2026, Compendium of Evidence in Opposition to Summary Adjudication; 3)

March 20, 2026, Minute Order, Tentative Ruling, and signed Order on Motion for Leave to File Cross-Complaint; and 4) February 9, 2026, Plaintiff's Evidentiary Objections and Motion to Strike the Declaration of Chelsea M. Ciscoe in Support of Plaintiff's Motion for Summary Adjudication.

Judicial notice is a mechanism which allows the Court to take into consideration matters which are presumed to be indisputably true. California Evidence Code Sections 451, 452, and 453 govern the circumstances in which judicial notice of a matter may be taken. While Section 451 provides a comprehensive list of matters that must be judicially noticed, Section 452 sets forth matters which *may* be judicially noticed, including, but not limited to, "[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States."

Section 452 provides that the court "may" take judicial notice of the matters listed therein, while Section 453 provides a caveat that the court "shall" take judicial notice of any matter "specified in Section 452 if a party requests it and: (a) Gives each adverse party sufficient notice of the request...to enable such adverse party to prepare to meet the request; and (b) Furnishes the court with sufficient information to enable it to take judicial notice of the matter." Cal. Evid. Code § 453.

While the requests made by Defendant fall within the purview of Section 452, matters which *may* be judicially noticed, the Court does find that Defendant provided Plaintiff and the Court sufficient notice of the request and copies of the documents requested to be noticed. As such, Defendant has satisfied the requirements of Evidence Code § 453 and the request for judicial notice is granted.

Plaintiff's Objections and Motion to Strike

Plaintiff moves to strike 1) the new Supplemental Declarations from Defendant's counsel filed June 18, 2026; 2) the additional Request for Judicial Notice filed June 28, 2026; and 3) all related new arguments relying on these materials. Plaintiff's sole basis for this motion is on the grounds that the underlying Motion for Reconsideration was untimely.

As the Court has ruled the motion was timely, Plaintiff's objections are deemed moot.

Defendant's Objections and Motion to Strike

Defendant objects to and moves to strike portions of Plaintiff's Opposition to Defendant's Motion for Reconsideration on the grounds of violating California Rule of Court, Rule 3.1113(k) for failing to specify what exhibit, page, or line is being referenced, thereby prejudicing Defendant and the Court's ability to analyze this quotation in its full context.

All references to exhibits or declarations in supporting or opposing papers must reference the number or letter of the exhibit, the specific page, and, if applicable, the paragraph or line number. California Rules of Court, Rule 3.1113(k).

Statements in a memorandum of points and authorities are not evidence. “Objections” to such statements are therefore ineffectual. *Cole v. Town of Los Gatos* (2012) 205 Cal.App.4th 749, 767 [140 Cal.Rptr.3d 722, 737]. A trial court may decline to consider an argument that does not comply with rule 3.1113 of the California Rules of Court. *Nationwide Ins. Co. of America v. Tipton* (2023) 91 Cal.App.5th 1355, 1365 [308 Cal.Rptr.3d 881, 887].

Although facially entitled an “opposition,” Plaintiff’s opposition is substantively a memorandum. Thus, the statements made within are not evidence and objections to such statements are ineffectual. Moreover, the Court has the discretion to decline considering Defendant’s objections and motions to strike on the grounds of violations California Rules of Court, Rule 3.1113(k).

Defendant’s objections and motion to strike is denied.

Motion for Reconsideration

Defendant moves for reconsideration pursuant to Code of Civil Procedure §§ 1008(a) and 473 on the grounds that (1) the instant Motion places different and correct facts before the Court which it did not consider in making its prior Order due to attorney mistake, inadvertence, and/or excusable neglect; and (2) out of an abundance of caution, the Court’s plenary authority to consider whether the April 15, 2026 Order at issue was inconsistent with the Court’s March 20, 2026 Order Granting Defendant Leave to File a Cross-Complaint.

Defendant argues that due to attorney mistake, inadvertence, and/or excusable neglect, Defendant’s Declaration in opposition to summary adjudication incorrectly stated Defendant thought Plaintiff would remove herself from “title” after six months, when in fact the statement made by Defendant was that she would remove herself from the “note” six months after close of escrow. Defendant contends that when signing the original Declaration, she intended to express her belief that she would be sole legal owner of the Property and Plaintiff would not have any legal ownership interest in the Property. Additionally, Defendant believed that Plaintiff would remove herself from any documents six months after the close of escrow referred to her being a co-signor on the loan, not that she had an ownership interest in the Property.

The Declaration of Defendant’s Former Attorney Cathleen Noche provides that in drafting Plaintiff’s Declaration in opposition to Plaintiff’s Motion for Summary Adjudication, she accidentally made a typographical error using the word “title” instead of “note” on page 2, lines 5-6, which read: “Around the time of closing, Plaintiff made statements that she intended on removing herself from title after six months.” (emphasis added).

Defendant argues that the Court’s tentative ruling, which was adopted by the April 15, 2026, Order hinged upon her use of the word “title” in her Declaration, which had accordingly blown her statutes of limitations. Had the Declaration stated Defendant believed Plaintiff would remove herself from the “note”, there would be no evidence of awareness triggering the

delayed discovery statute of limitations as of June 2020. Defendant's lack of awareness in June 2020 that Plaintiff would take an ownership interest in the Property creates a triable issue of material fact defeating a statute of limitations defense on summary adjudication.

Plaintiff argues that Defendant has failed to provide any evidence of any new or different facts, circumstances, or law, as Defendant raised all issues in her current papers at the prior hearing on December 9, 2025. Additionally, Defendant's "corrected" statements contradict the text messages attached to her moving papers.

A motion for reconsideration under Code of Civil Procedure § 1008(a) requires the moving party to present "new or different facts, circumstances, or law" that were not available at the time of the original order. The moving party must also provide a satisfactory explanation for why the new information was not produced at the time of the original motion. See *New York Times Co. v. Superior Court*, 135 Cal.App.4th 206, 212 (2005); *Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC*, 61 Cal.4th 830, 839 (2015). Facts of which a party seeking reconsideration was aware at the time of the original ruling are not "new or different facts," as would support a trial court's grant of reconsideration. *People v. Safety National Casualty Corp.* (2010) 186 Cal.App.4th 959, 974 [112 Cal.Rptr.3d 581, 592].

A declaration from a different individual is not tantamount to a new or different fact, circumstance, or law. *People v. Safety National Casualty Corp.* (2010) 186 Cal.App.4th 959, 973 [112 Cal.Rptr.3d 581, 592]. In *People v. Safety National Casualty Corp.*, the court found that the declaration of a different individual describing the employee's duties and office procedures for handling forfeiture notices was not "new" information as required to support a motion for reconsideration. *Id.*

The general relief mechanism provided in Code of Civil Procedure § 473 cannot be relied on as a basis for reconsideration pursuant to Code of Civil Procedure § 1008, as it would undermine the intent of the Legislature. *Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1501 [38 Cal.Rptr.2d 626, 630], as modified on denial of reh'g (Apr. 3, 1995).

Defendant has not established new or different facts, circumstances, or law within the meaning of Code of Civil Procedure § 1008. The text messages upon which Defendant relies were previously submitted to and received by the Court in connection with the prior summary-adjudication proceedings. The fact that the Court did not reach the admissibility of those communications because it determined that Defendant's claims were barred by the applicable statutes of limitation does not render the evidence "new" for purposes of § 1008.

Defendant's reliance upon former counsel's declaration pursuant to Code of Civil Procedure § 473 concerning the alleged typographical error likewise does not establish compliance with §1008. The underlying facts of what Defendant actually expected and when was known to Defendant at the time of the original ruling. An amended declaration does not introduce any fact that was previously unknown or unavailable; it merely re-characterizes

evidence which was already in Defendant's possession. To that extent, Defendant's Motion for Reconsideration is denied.

However, upon due consideration, the Court finds that the granting of the Interlocutory Judgment and Summary Adjudication was erroneous. The Court did not intend to adopt Plaintiff's position that the governing statutes require the Court to grant the relief Plaintiff seeks or that Defendant's claims and defenses are barred as a matter of law. Rather, the Court concludes that the prior ruling did not sufficiently consider the relevant facts and was based, in part, upon an incorrect interpretation of the applicable statutory provisions that the Court does not adopt.

A trial court has the inherent power to reconsider a prior ruling based on its own realization that the ruling was erroneous and not based upon a determination that the motion to reconsider should itself be granted on its merits. *See In re Marriage of Barthold* (2008) 158 Cal.App.4th 1301, 1308 [70 Cal.Rptr.3d 691, 696]; *Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1103 [29 Cal.Rptr.3d 249, 257, 112 P.3d 636, 642], as modified (June 10, 2005).

To preclude courts from sua sponte reconsideration of their own rulings "would directly and materially impair and defeat the court's most basic functions, exercising its discretion to rule upon controversies between the parties and ensuring the orderly administration of justice." *Abassi v. Welke* (2004) 118 Cal.App.4th 1353, 1359 [14 Cal.Rptr.3d 336, 340], as modified (May 27, 2004), as modified (June 22, 2004). Therefore, the only requirement of the court is that it exercise "due consideration" before modifying, amending, or revoking its prior orders." *Id.* at 1360.

Accordingly, the Court sua sponte vacates its prior order granting Summary Adjudication and the Interlocutory Judgment.

MOTION TO SELL PROPERTY

Plaintiff moves for an order directing the sale of the Subject Property located at 120 Meadowlark Court, Placerville, CA 95667 and appointing Franco Garcia, of Garcia Real Estate as the Partition Referee to market and sell the Property based upon the entering of the Interlocutory Judgment.

As the Court has vacated the Interlocutory Judgment and order granting Summary Adjudication, Plaintiff's request is denied.

DEMURRER

Plaintiff/Cross-Defendant, Janeen Kimbriel ("Plaintiff"), demurrers to Defendant/Cross-Complainant's, Chelsea M. Ciscoe ("Defendant"), First Amended Cross-Complaint ("FACC"). On June 12, 2026, Defendant filed an opposition. Plaintiff filed a Reply on June 22, 2026.

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Request for Judicial Notice

Defendant seeks judicial notice of the following: 1) Defendant's First Amended Cross-Complaint (excluding exhibits); 2) March 20, 2026, Minute Order, Tentative Ruling, and Signed Order on Motion for Leave to File Cross-Complaint; 3) Plaintiff Janeen Kimbriel's Opposition to Motion for Leave to File a Cross-Complaint.

Judicial notice is a mechanism which allows the Court to take into consideration matters which are presumed to be indisputably true. California Evidence Code Sections 451, 452, and 453 govern the circumstances in which judicial notice of a matter may be taken. While Section 451 provides a comprehensive list of matters that must be judicially noticed, Section 452 sets forth matters which *may* be judicially noticed, including, but not limited to, "[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States."

Section 452 provides that the court "may" take judicial notice of the matters listed therein, while Section 453 provides a caveat that the court "shall" take judicial notice of any matter "specified in Section 452 if a party requests it and: (a) Gives each adverse party sufficient notice of the request...to enable such adverse party to prepare to meet the request; and (b) Furnishes the court with sufficient information to enable it to take judicial notice of the matter." Cal. Evid. Code § 453.

While the requests made by Defendant fall within the purview of Section 452, matters which *may* be judicially noticed, the Court does find that Defendant provided Plaintiff and the Court sufficient notice of the request and copies of the documents requested to be noticed. As such, Defendant has satisfied the requirements of Evidence Code § 453 and the request for judicial notice is granted.

Meet and Confer Requirement

Code of Civil Procedure §430.41(a) provides: Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.

Code of Civil Procedure §430.41(a)(3):

The demurring party shall file and serve with the demurrer a declaration stating either of the following:

(A) The means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer.

(B) That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.

Dumas v. Los Angeles County Bd. of Supervisors (2020) 45 Cal. App. 5th 348 (“If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort”).

Based on the Declaration of Matthew Ramirez, counsel attempted to meet and confer with Defendant prior to filing, but the dispute could not be resolved.

Background

On April 29, 2026, Defendant filed an Amended Cross-Complaint for the following causes of action: 1) Quiet Title; 2) Intentional Misrepresentation; 3) Negligent Misrepresentation; 4) Fraud in the Inducement; 5) Breach of Fiduciary Duty; 6) Civil Theft (Penal Code section 496); 7) Constructive Trust; 8) Resulting Trust; 9) Equitable Estoppel; and 10) Declaratory Relief.

On April 15, 2026, the Court entered an Interlocutory Judgment and Notice of Entry of Judgment which ordered Plaintiff and Defendant were equal joint tenants of the Subject Property and Plaintiff has a right to partition the Subject Property as a matter of law. The Court adopted its tentative ruling issued on February 20, 2026. The Court thereafter sua sponte vacated the Interlocutory Judgment and Summary Adjudication.

Legal Principles

[A] demurrer challenges only the legal sufficiency of the complaint, not the truth or the accuracy of its factual allegations or the plaintiff’s ability to prove those allegations.” (*Amarel v. Connell* (1998) 202 Cal.App.3d 137, 140.) A demurrer is directed at the face of the complaint and to matters subject to judicial notice. (Code Civ. Proc., § 430.30, subd. (a).) All properly pleaded allegations of fact in the complaint are accepted as true, however improbable they may be, but not the contentions, deductions or conclusions of facts or law. (*Blank v. Kirwan* (1985) 39 Cal.3d gives “the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (*Blank*, supra, 39 Cal.3d at p. 318.)

Discussion

Plaintiff generally demurs to FACC pursuant to Code of Civil Procedure §§ 430.10(e) and 430.10(f) and specially demurs, to the First through Tenth Causes of Action on the following grounds: 1) Res judicata; 2) Statutes of limitations; and 3) Real property doctrines.

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1. Res Judicata

Plaintiff argues that Defendant's First through Tenth Causes of Action are barred under the doctrine of res judicata pursuant to the Interlocutory Judgment issued on April 15, 2026. As the Court has vacated the Interlocutory Judgment, the Court finds Plaintiff's argument moot.

2. Statute of Limitations

Plaintiff argues the statutes of limitations bars Defendant's causes of action. Plaintiff contends that all causes of action are supported by Defendant's allegation that she acquired the Property with Plaintiff in June 2020 and that there were supposed to be documents to remove Plaintiff's name "within six months" – effectively December 2020. The statute of limitations to enforce oral contract, to rescind a deed for fraud or mistake, or to cancel an instrument, is two, three, or four years, respectively.

Plaintiff further argues the delayed discovery rule is inapplicable, as Defendant does not specially plead the inability to have made earlier discovery despite reasonable diligence. As the alleged injury is based principally on a publicly recorded document, the Court must find Defendant had constructive and/or inquiry notice and therefore presumptive knowledge which precludes any use of the delayed discovery doctrine.

Defendant argues that Plaintiff ignores factual allegations of delayed discovery contained within the FACC. Defendant contends that Plaintiff made misrepresentations within her capacity as Defendant's fiduciary to actively conceal Plaintiff fraudulently inserting herself onto title as a joint tenant. Defendant did not discover there may be an issue with title until November 30, 2024, upon receipt of an email from Plaintiff.

The Legislature has not established a specific statute of limitations for actions to quiet title. (*Muktarian v. Barmby* (1965) 63 Cal.2d 558, 560, 47 Cal.Rptr. 483, 407 P.2d 659 (*Muktarian*).) Therefore, courts refer to the underlying theory of relief to determine the applicable period of limitations. (*Ibid.*; see 53 Cal.Jur.3d (2012) Quieting Title, § 34, pp. 412-413.) An inquiry into the underlying theory requires the court to identify the nature (i.e., the "gravamen") of the cause of action. (*Hensler v. City of Glendale* (1994) 8 Cal.4th 1, 22, 32 Cal.Rptr.2d 244, 876 P.2d 1043.) Generally, the most likely time limits for a quiet title action are the five-year limitations period for adverse possession, the four-year limitations period for the cancellation of an instrument, or the three-year limitations period for claims based on fraud and mistake. *Salazar v. Thomas* (2015) 236 Cal.App.4th 467, 476–477 [186 Cal.Rptr.3d 689, 694–695], as modified on denial of reh'g (May 28, 2015)

"[N]o statute of limitations runs against a plaintiff seeking to quiet title while he is in possession of the property. [Citations.] In many instances one in possession would not know of dormant adverse claims of persons not in possession. [Citation.] Moreover, even if, as here, the party in possession knows of such a potential claimant, there is no reason to put him to the

expense and inconvenience of litigation *until such a claim is pressed against him*. [Citation.]” (*Muktarian, supra*, 63 Cal.2d at p. 560, 47 Cal.Rptr. 483, 407 P.2d 659, fn. omitted, italics added.) Thus, mere notice of an adverse claim is not enough to commence the owner's statute of limitations. *Id.* at 477–478.

The gravamen of the Quiet Title cause of action is based on fraud, therefore imputing a three-year statute of limitations. However, Plaintiff moved out of the Property in or around October 2022 and Defendant remained in exclusive possession. Plaintiff did not press an adverse claim against Defendant until filing a Complaint on April 7, 2025. Accordingly, the three-year statute of limitations for Defendant’s Quiet Title Cause of action began on April 7, 2025.

For intentional and negligent misrepresentation, fraud in the inducement, breach of fiduciary duty sounded in fraud, and a civil claim under Penal Code § 496, the three-year statute of limitations pursuant to Code of Civil Procedure § 338(d) applies. Constructive trust, resulting trust, equitable estoppel, and declaratory relief are remedial or equitable in nature and typically borrow the limitations period of the underlying substantive claim.

Code of Civil Procedure § 338 codifies the delayed discovery rule, providing that a cause of action for fraud is not to be deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake. “Actual discovery” does not include constructive knowledge imputed by law. *Id.*

In order to rely on the discovery rule for delayed accrual of a cause of action, “[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) **the time and manner of discovery and** (2) **the inability to have made earlier discovery despite reasonable diligence.**” (*McKelvey v. Boeing North American, Inc.* (1999) 74 Cal.App.4th 151, 160, 86 Cal.Rptr.2d 645.) In assessing the sufficiency of the allegations of delayed discovery, the court places the burden on the plaintiff to “show diligence”; “conclusory allegations will not withstand demurrer.” (*Ibid.*) *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808 [27 Cal.Rptr.3d 661, 668, 110 P.3d 914, 920–921] (emphasis added).

“It is necessary for a plaintiff to allege facts showing that suit was brought within a reasonable time after discovery of the fraud without unnecessary delay and that failure to make the discovery sooner was not due to negligence.” (*Seeger, supra*, 18 Cal.2d 409, 418, 115 P.2d 977.) *Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1391 [124 Cal.Rptr.3d 271, 302], as modified on denial of reh'g (Mar. 18, 2009).

“Although the general rules relating to pleading and proof of facts excusing a late discovery of fraud remain applicable, it is recognized that in cases involving such a [fiduciary] relationship facts which would ordinarily require investigation may not excite suspicion, and that the same degree of diligence is not required.” (*Hobart v. Hobart Estate Co.* (1945) 26 Cal.2d 412,

440, 159 P.2d 958; cf. *Alliance Mortgage Co. v. Rothwell*, supra, 10 Cal.4th 1226, 1240, 44 Cal.Rptr.2d 352, 900 P.2d 601.) A person in a fiduciary relationship may relax, but not fall asleep. “[I]f she became aware of facts which would make a reasonably prudent person suspicious, she had a duty to investigate further, and she was charged with knowledge of matters which would have been revealed by such an investigation.” (*Miller v. Bechtel Corp.* (1983) 33 Cal.3d 868, 875, 191 Cal.Rptr. 619, 663 P.2d 177 [husband and wife].) *Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1394 [124 Cal.Rptr.3d 271, 305], as modified on denial of reh'g (Mar. 18, 2009).

The Court does not find that Defendant has adequately plead facts to support why earlier discovery could not have been made despite reasonable diligence. On or about June 23, 2020, the Parties acquired their interests in the Property as joint tenants through a Grant Deed. Defendant alleged that on November 30, 2024, she received an email from Plaintiff which was the first time Defendant understood Plaintiff might claim ownership. Defendant does not provide sufficient facts to support why she did not learn of this sooner. Although a fiduciary relationship exists which reduces Defendant’s burden of discovery, it does not eliminate Defendant’s requirement to plead specific facts showing that despite the fiduciary relationship and reasonable diligence, earlier discovery was not possible.

Accordingly, the Court sustains Plaintiff’s demurrer as to the Second, Third, Fourth, Fifth, Sixth, Seventh, Eighth, and Ninth Causes of Action with leave to amend. The Court does not find the statute of limitations has run on the First and Tenth Causes of Action and therefore overrules Plaintiff’s demurrer as to those respective causes of action.

3. Real Property Doctrines

Plaintiff contends that Defendant seeks to challenge Plaintiff’s title to the property in the FACCC by asserting Plaintiff made a promise to Defendant that Defendant would be the sole owner, and/or that Plaintiff would only hold an interest in the Property for six months, which are barred under substantive law governing real property: 1) parol evidence rule; 2) equal dignities rule; 3) merger doctrine; and 4) statute of frauds writing requirement.

The real property doctrines Plaintiff raises all turn on factual questions about whether fraud occurred and the nature of the Parties' representations. As Defendant has alleged fraud in the procurement of the deed, these are questions of fact which cannot be resolved on demurrer.

TENTATIVE RULING #11:

PLAINTIFF’S OBJECTIONS AND MOTION TO STRIKE IS DEEMED MOOT. DEFENDANT’S OBJECTIONS AND MOTION TO STRIKE IS DENIED.

DEFENDANT’S MOTION FOR RECONSIDERATION IS DENIED.

THE COURT SUA SPONTE VACATES THE APRIL 15, 2026, INTERLOCUTORY JUDGMENT AND GRANTING OF SUMMARY ADJUDICATION.

PLAINTIFF'S MOTION TO SELL PROPERTY AND APPOINT PARTITION REFEREE IS DENIED.

PLAINTIFF'S DEMURRER AS TO THE SECOND THROUGH NINTH CAUSES OF ACTION IS SUSTAINED WITH LEAVE TO AMEND. PLAINTIFF'S DEMURRER TO THE FIRST AND TENTH CAUSES OF ACTION IS OVERRULED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.